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RODRIGUEZ V. GREEN VALLEY PAINTING, INC., ET AL
CU25-03192

Motion for Preliminary Approval of PAGA & Class Action Settlement

TENTATIVE RULING

Plaintiff JULIO MEJIA RODRIGUEZ moves for preliminary approval of the settlement reached with Defendants GREEN VALLEY PAINTING, INC. and IAN LILLIBRIDGE in Plaintiff's class action and Private Attorneys General Act ("PAGA") suit against them for labor law violations.

Preliminary Review of Class Action Settlement. Settlements of class actions are governed by California Rule of Court rule 3.769. Subsection (c) requires a preliminary approval by the court of the settlement after the settlement agreement and proposed class notice have been filed with the court and a proposed order has been lodged with the court. The settlement agreement and proposed class notice were filed with this motion. (Declaration of Young Ryu in Support of Motion ("Ryu Dec.") at ¶ 10, Exhibit 1; Notice of Errata filed 5/13/2026.) There is a proposed order granting preliminary approval formally and separately lodged in the case file.

Here, the settlement occurred subsequent to mediation with a neutral mediator. (Ryu Dec. at ¶¶ 9-10.) The involvement of a neutral mediator is normally a factor to be given considerable weight in maintaining the presumption that the settlement is the product of arms'-length negotiation. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129.) In this matter, however, the settlement was effected months after the mediation, minimizing the weight afforded to the presence of a neutral mediator earlier in the process. Nonetheless, nothing in the terms of settlement suggests preferential treatment or conflicts of interest among the proposed class members. The class members appear to be fairly treated according to their harms suffered.

The court has received and reviewed Plaintiff's additional briefing on the reasonableness of the Total Settlement Amount of \$160,000 as compared to estimates of Defendants' potential liability. The court is satisfied that the Total Settlement Amount is reasonable for purposes of preliminary settlement approval.

Notice to Class Members; Certification. Certification is a procedure by which the court determines whether the plaintiff is a proper class representative and the action can proceed to trial as a class action. To obtain class certification, the proposed class representative(s) must show (1) an ascertainable class of sufficient size as to justify class action treatment ("numerosity") and (2) a well-defined community of interest in questions of fact and law. (*Vasquez v. Superior Court* (1971) 4 Cal.3d 800, 809.) The

factors the court considers in determining the community of interest element are (1) the predominance of common issues, (2) the typicality of the claims of the proposed class members, and (3) the ability of the proposed class representative to adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Plaintiff has preliminarily established the requirements for class certification. The class is numerous at approximately 91 persons. The class is also readily ascertainable as its members are all in Defendants' employment records. As for the community of interest requirement, all proposed class members suffered the same harm from Defendants' employment policies, ensuring that common issues predominate among their claims and that the named plaintiff's claims are typical of the class. There is also no sign of any antagonism between the named plaintiff and the rest of the class. Lastly, Plaintiff's counsel appears up to the task of representing the class in light of their recitation of their experience with class actions and wage and hour cases in particular. (Ryu Dec. at ¶ 3-6.)

The proposed class notice provides extensive information to the recipients about what is going on, what their options are, and how to exercise their preferred option. (Notice of Errata filed 5/13/2026.) The notice explains that the recipient is receiving the notice because records indicate employment with Defendants in the class period. The notice states an estimated recovery and number of workweeks for the recipient, with information on how to submit more accurate information for payment. The notice tells the recipient that they will receive a payment with no action needed on their part but they may also exclude themselves from or object to the settlement, with explanations of what exclusion and objection mean. The notice is properly informative.

Deductions. The court observes that the issue of deductions is typically left to be explored in detail at the final approval stage; accordingly, Plaintiff's counsel makes minimal detailed argument in favor of particular deductions at this time. The court nonetheless conducts some analysis of the proposed deductions as part of preliminary evaluation of the reasonableness of the settlement.

Attorneys' fees in class action cases are typically based upon a percentage of the gross settlement amount, under the "common fund" doctrine, which spreads the cost of the attorney among all of the parties benefited (the class). The California Supreme Court explained the advantages and disadvantages of both the common fund method and the lodestar-multiplier method (hours worked by hourly rate, multiplied by a factor to account for risk and high quality of work) before endorsing the common fund method cross-checked by the lodestar-multiplier method in *Laffitte v. Robert Half International, Inc.* (2016) 1 Cal.5th 480, 489-490 (*Laffitte*). The court observes, again understanding that counsel has not yet advanced a detailed argument concerning the lodestar amount for this case, that this case resolved with much less work involved than *Laffitte*, which took eight and a half years and saw extensive written discovery, extensive law and motion practice,

sixty-eight depositions, three summary judgment motions, a class certification motion, a motion for reconsideration of class certification, a motion to decertify the class, numerous experts, and two full-day mediations. In that context an award of one third of nineteen million dollars as attorneys' fees was not an abuse of discretion.

This case resolved less than a year after initiation without any formal discovery or motion practice. (Ryu Dec. at ¶¶ 9-10 [informal documents reviewed but discovery processes such as deposition not performed].) The revised requested attorneys' fees award of 20% of the Total Settlement Amount (\$32,000) appears appropriate per the evidence before the court at this preliminary approval stage; the attorneys' fees award will be further analyzed at final approval with the aid of information about counsel's lodestar.

The court finds that review of counsel's claim of up to \$10,000 in costs is better conducted at final approval with the aid of a detailed memorandum of costs.

The claim of up to \$6,250 for settlement administration costs does not appear excessive.

The revised "service award" of \$2,500 for Plaintiff's personal efforts is reasonable.

Conclusion. Plaintiff's motion is granted.

9:30 a.m. CALENDAR

IN RE THE ESTATE OF TINA THOMPSON, DECEASED
FPR045402

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Status Review/Petition for Final Distribution

PREGRANT ORDER

This matter was continued from February 5, 2026, March 5, 2026 and July 2, 2026 to allow the petitioner to file a petition for final distribution. Nothing has been filed since the last hearing.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

Status of filing the petition for final distribution.
